

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TYRONE ETHENS FULLER JR.,

Petitioner

VS.

DARIEN TYLER ROBINSON,

Respondent

) Case Number: FPT-24-378499

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom at 9AM. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Tyrone Ethens Fuller, Jr. (Father) and Darien Tyler Robinson (Mother) have two minor children together, Courtlyn (DOB 8/18/2020, age 5), and Cashous (DOB 3/23/2022, age 4). On 1/31/2025, the Court entered judgment and awarded sole legal and physical custody of the children to Father.
- 2) On 8/12/2025, Mother filed a request for new custody orders and to set aside the 1/31/2025 judgment for lack of service. Father filed a response stating he was concerned about the children's safety while in Mother's care; he stated, among other things, that Mother was soliciting prostitution and sneaking men into her home. Father stated he had been the primary parent since May 2024 and that before March 2025, Mother saw the children once a month, often did not show up to scheduled visits, and was inconsistent with phone and video calls. Father requested

1 sole legal and physical custody with alternating weekends and holidays and daily video calls
2 for Mother.

- 3 3) On 10/13/2025, a Stipulation and Order was filed. The parties agreed that Mother shall have the
4 first, third, and fourth weekends of the month from Friday at 3PM to Sunday at 6PM and
5 Thanksgiving and Christmas in odd years. The parties also agreed that each party may have up to
6 10 vacation days (within the state only) per year with the children, with 30 days' notice to the
7 other party.
- 8 4) On 11/6/2025, the Court awarded Father sole legal custody with parenting time for
9 Mother pursuant to the 10/13/2025 Stipulation and Order.
- 10 5) On for hearing is Father's 4/10/2026 request seeking primary physical custody and for all
11 communication between the parties to be through Our Family Wizard or Talking Parents, and to
12 be limited to discussions about the children only. Father requests additional orders relating to
13 safe transportation for the children, the children's cleanliness and hygiene, and therapy for the
14 children.
- 15 6) On 5/4/2026, Father filed a supplemental declaration in which he states (and provides exhibits to
16 show) that one of the men Mother brought to her home and around the children is a registered sex
17 offender and that another man has been determined to be "violent and dangerous" by the San
18 Francisco District Attorney's Office. Father asks that Mother's parenting time be decreased from
19 three weekends per month to two weekends per month.
- 20 7) On 7/10/2026, Mother filed a response in which she states she "would like to continue with the
21 custody and visitation we already currently have." She states the children have become
22 accustomed to, and are happy with, the current schedule. She states that since the last court
23 hearing, she has completed a certification and have a job offer for a job that starts at the end of
24 this month. She states she has saved money and will soon have her own place.

25 **B. Findings and Orders**

- 26 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
27 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
28 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
29 children is the United States.

2) **The parties are ordered to appear at 9AM on 7/16/2026 in Department 404.**